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DEMURRER WITHOUT MOTION TO STRIKE

The Court tenders the following

tentative decision in the matter Nathan Harris v. RSG Group North America, L.P., et al., Los Angeles County Superior Court case number 25STCV36685, set for hearing on July 8, 2026. RSG Group North America, L.P., John Reed Fitness, LA, LLC, JR Club Holding, Inc., (collectively, Entity Defendants) and Deesil Silva (collectively, Defendants) demur to Nathan A. Harris's (Plaintiff) first amended complaint (FAC). Plaintiff opposes demurrer. Defendant's demurrer is overruled.

A. Legal Standard

A demurrer is

sustained where "[t]he pleading does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., 430.10, subd. (e).) "A demurrer tests the legal sufficiency of the factual allegations in a complaint." (Yalung v. State (2023) 98 Cal.App.5th 71, 80.) In reviewing a complaint's legal sufficiency, a court will treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law. (Esparza v. Kaweah Delta Dist. Hospital (2016) 3 Cal.App.5th 547, 552.) It is well settled that a "demurrer lies only for defects appearing on the face of the complaint[.]" (Stevens v. Superior Court (1999) 75 Cal.App.4th 594, 601.) "We not only treat the demurrer as admitting all material facts properly pleaded, but also give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (Guclimane Co. v. Stewart Tit. Guaranty Co. (1998) 19 Cal.4th 26, 38.) For purposes of ruling on a demurrer, the complaint must be construed liberally by drawing reasonable inferences from the facts

pleaded. (Wilner v. Sunset Life Ins. Co. (2000) 78 Cal.App.4th 952, 958.)

When ruling

on a demurrer, a court may only consider the complaint's allegations or matters which may be judicially noticed. (Blank

v. Kirwan (1985) 39 Cal.3d 311,

318.) The Court may not consider any other extrinsic evidence or judge the credibility of the allegations pleaded or the difficulty a plaintiff may have in proving his allegations. (Ion Equipment

Corporation v. Nelson (1980) 110 Cal.App.3d 868, 881.) A demurrer is

properly sustained only when the complaint, liberally construed, fails to state

facts sufficient to constitute any cause of action. (Kramer v. Intuit Inc. (2004) 121 Cal.App.4th 574, 578.)

When a

demurrer is sustained or motion to strike is granted, the Court determines

whether there is a reasonable possibility that the defect can be cured by amendment. (Blank, supra, 39 Cal.3d at p. 318.) When a

plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.)

B. Discussion

Defendants demur to the following causes

of action on the grounds that Plaintiff has not pled sufficient facts: (1)

Plaintiff's second cause of action for discrimination in violation of the Fair

Employment and Housing Act (FEHA); (2) third cause of action for retaliation in

violation of the FEHA; (3) fourth cause of action for failure to prevent

discrimination, harassment, or retaliation in violation of the FEHA; (4) fifth

cause of action for retaliation in violation of Labor Code section 1102.5; (5)

seventh cause of action for wrongful termination; and (6) eighth cause of

action for intentional infliction of emotional distress. (Code Civ. Proc., §

430.10, subd. (e).) The Court will address each cause of action in turn.

Plaintiff has pled sufficient facts to

state claims for discrimination, retaliation, and failure to prevent the same under the FEHA.

Defendants argue that Plaintiff has not pled sufficient facts to constitute a cause of action for discrimination, retaliation, or failure to prevent the same based on sex or gender. Under the FEHA, it is unlawful for an employer to “discriminate against [a] person in compensation or in terms, conditions, or privileges of employment” because of that employee’s sex or gender. (Gov. Code, § 12940, subd. (a).) To state a discrimination claim, a plaintiff must generally show that “(1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive.” (*Guz v. Bechtel National Inc.* (2000) 24 Cal.4th 317, 355.) Additionally, it is unlawful for “any employer . . . to discharge, expel, or otherwise discriminate against any person because the person has opposed any practices forbidden under this part or because the person has filed a complaint, testified, or assisted in any proceeding under this part.” (Gov. Code, § 12940, subd. (h).) And it is unlawful for “an employer . . . to fail to take all reasonable steps necessary to prevent discrimination and harassment from occurring.” (*Id.*, § 12940, subd. (k).)

Defendants argue that Plaintiff has not pled facts showing an adverse employment action taken against him. An adverse employment action is one which “materially affect the terms, conditions, or privileges of employment.” (*Yanowitz v. L’Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1052.) Here, Plaintiff alleges that he was reprimanded and eventually constructively discharged through Defendants’ failure to address the alleged discrimination. (FAC ¶¶ 26, 138–143.) Thus, Plaintiff has pled facts showing that he was subjected to an adverse employment action.

Defendants additionally argue that Plaintiff has failed to identify a similarly situated comparator or a connection between the adverse employment actions and Plaintiff’s sex or gender. But Defendant offers no authority for the proposition that Plaintiff must name a specific employee treated differently than himself and the pleading stage, and thus the Court does not recognize this as an additional requirement. Plaintiff adequately alleges that Defendants dismissed and minimized his reports of sexual harassment and misconduct and failed to protect him, leaving him exposed to further harassment and intimidation. (*Id.* ¶¶ 75–77.) He further alleges that this dismissiveness was motivated by his sex or gender. (*Id.*

¶ 79.) Such allegations are sufficient to demonstrate discriminatory motive at the pleading stage. Thus, Plaintiff has pled sufficient facts to state causes of action for discrimination and retaliation, and his additional claim for failure to prevent discrimination and retaliation is sufficiently pled as well as a result. Accordingly, Defendants' demurrer to Plaintiff's second, third, and fourth causes of action is overruled.

Plaintiff has pled sufficient facts to state a retaliation claim under Labor Code section 1102.5.

Defendants argue that Plaintiff has not pled sufficient facts to constitute a cause of action for retaliation under Labor Code section 1102.5. Under the Labor Code, an employer "shall not retaliate against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information, to a government or law enforcement agency, to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance . . . if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the employee's job duties." (Lab. Code, § 1102.5, subd. (b).) To state a retaliation claim under section 1102.5, a plaintiff must show that: '(1) he or she engaged in a 'protected activity,' (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action.'" (See *Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042; *Morgan v. Regents of University of California* (2000) 88 Cal.App.4th 52, 69.)

Defendants argue that Plaintiff has not alleged that he engaged in any protected activity. Indeed, the plaintiff must show that they complained of a legal violation, not just a general disagreement among personnel. (*Patten v. Grant Joint Union High School District* (2005) 134 Cal.App.4th 1378, 1385.) Here, Plaintiff alleges that he disclosed to people with authority over him potential violations of the FEHA and criminal indecent exposure laws by another employee. (FAC ¶ 114.) These do not constitute mere workplace grievances and involve potential violations of law. Indeed, the fact that the misconduct was directed at Plaintiff does not render these complaints non-actionable. Nor does Defendant offer authority limiting Plaintiff to bringing a retaliation claim under the FEHA only when misconduct

under the FEHA is alleged. Thus, Plaintiff has pled sufficient facts demonstrating that he engaged in protected activity. Accordingly, Defendants' demurrer is overruled as to Plaintiff's fifth cause of action as well.

Plaintiff has pled sufficient facts to state a cause of action for wrongful constructive discharge in violation of public policy.

Defendants argue that Plaintiff has not pled sufficient facts to show constructive discharge. "Constructive discharge occurs when the employer's conduct effectively forces an employee to resign." (Turner v. Anheuser-Busch, Inc. (1994) 7 Cal.4th 1238, 1244 (Turner).) The plaintiff must prove that the employer either "intentionally created or knowingly permitted" working conditions so intolerable at the time of resignation that "a reasonable employer would realize that a reasonable person in the employee's position would be compelled to resign." (Id. at p. 1251.) And an employer has no right "to terminate employment for a reason that contravenes fundamental public policy as expressed in a constitutional or statutory provision." (Id. at p. 1252.) Thus, a constructive discharge in violation of fundamental public policy gives rise to a tort action in the employee's favor. (Ibid.)

Here, Plaintiff alleges that he was subjected to severe and pervasive sexual harassment in the workplace and repeatedly complained of these conditions. (FAC ¶ 138.) He further alleges that Defendants "failed to conduct a prompt or meaningful investigation, failed to interview witnesses, failed to separate Plaintiff from the harasser, and failed to take timely or effective corrective action. (Id. ¶ 139.) Rather, they allegedly dismissed, minimized, and discredited his complaints. (Id. ¶ 140.) Defendants' failure to act for months following the start of the harassment led to working conditions allegedly so intolerable and aggravated that a reasonable person in Plaintiff's position would have quit, as he did on October 10, 2025. (Id. ¶¶ 143–144.) The fact that Plaintiff remained employed for some months after the harassment began does not defeat his claim for constructive eviction, as Plaintiff was attempting to remedy the workplace situation and only resigned after those efforts appeared doomed. Thus, Plaintiff has pled sufficient facts to state a cause of action for constructive discharge under Turner. And, as discussed ante, any such discharge would have been in potential violation of the FEHA, and thus public policy. Accordingly, Defendants' demurrer to Plaintiff's seventh cause of

action is overruled as well.

Plaintiff has pled sufficient facts to state a claim for intentional infliction of emotional distress.

Defendants argue that Plaintiff has not pled sufficient facts to constitute his eighth cause of action for intentional infliction of emotional distress. To state such a claim in the employment context, a plaintiff must allege conduct that violates the FEHA and satisfies the traditional elements of an intentional infliction of emotional distress claim. (See *Light v. Department of Parks & Recreation* (2017) 14 Cal.App.5th 75 (Light).)

As discussed above, Plaintiff has pled sufficient facts to state causes of action under the FEHA for retaliation and discrimination. With respect to intentional infliction of emotional distress, a plaintiff must show “(1) outrageous conduct by the defendant; (2) the defendant’s intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff’s suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.” (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1259.) To be considered outrageous, conduct must be “beyond all possible bounds of decency and to be regarded as atrocious and intolerable in a civilized community.” (*Terice v. Blue Cross of California* (1989) 46 Cal.App.4th 55, 80.)

In *Light*, the Court of Appeal discussed the level of conduct that could be deemed outrageous in the employment context regarding a motion for summary judgment. The court found that an employee who was ostracized in the workplace, encouraged to lie to investigators, pursued at home to determine whether she lied as instructed, and verbally and physically attacked after disobeying had shown sufficient triable issues of material fact to survive summary judgment. (*Light*, supra, 14 Cal.App.5th at p. 102.) However, the court found summary judgment appropriate regarding another employee who listened to the plaintiff’s complaints about retaliation, encouraged the efforts to silence her, and participated in retaliation against her, reasoning that the defendant’s actions were not extreme or outrageous as a matter of law. (*Ibid.*)

Here, Plaintiff alleges that Defendants’ discriminatory practices constituted outrageous conduct. (FAC ¶ 152.)

Specifically, Plaintiff alleges that Defendant Silva “engaged in outrageous and extreme conduct toward Plaintiff, including repeatedly engaging in sexually inappropriate behavior and intentionally exposing his genitals to Plaintiff during working hours, in a public area of the workplace, while Plaintiff was teaching a class and unable to leave.” (Id. ¶ 152.) Additionally, despite Plaintiff’s complaints, Entity Defendants failed to investigate meaningfully or take actions to protect Plaintiff. (Id. ¶¶ 154–155.) Such conduct could be deemed to carry a conscious disregard of causing Plaintiff severe emotional distress, and beyond all possible bounds of decency. And these do not constitute mere personnel management decisions as argued by Defendants. Thus, the Court finds that Plaintiff has alleged extreme or outrageous conduct as a matter of law; further factual inquiry would be inappropriate at the demurrer stage. Accordingly, Defendants’ demurrer as to Plaintiff’s eighth cause of action is overruled as well.

C. Conclusion

The Court overrules
Defendants’ demurrer.